

ATTACHMENT J-0200000-10
OIL AND HAZARDOUS SUBSTANCE SPILL RESPONSE PROCEDURES

1. General Instructions

a. The Contractor shall provide oil and hazardous substance (OHS) spill response and cleanup to minimize damage to property or risk of human exposure and to ensure the installation complies with Federal statutes and regulations, Host Nation laws and regulations, and DoD policies, instructions and guidance, including, but not limited to, OPNAVINST 5090.1, and DL152/2006.

b. OHS includes hazardous wastes, hazardous materials, petroleum products, e.g., gasoline, diesel, JP-5, hydraulic fluid. Historically, 95 percent of OHS spills are petroleum products. OHS does not include radioactive, medical and infectious wastes and materials, weapons and explosives. Spill containment and cleanup is limited to spills that occur on ground surfaces, in or on soil, in facilities, in Hazardous Waste storage facilities, and on water containing features such as water ditches and rainstorm drainage.

c. The Contractor shall work as part of the Government's Incident Command System and comply with the NAS Sigonella (NASSIG) Spill Prevention and Response Plan. The NASSIG Fire Department acts as the initial Facility Incident Commander (FIC) and is responsible for receiving all initial spills reports. The Fire Department as the FIC will provide initial response and determine procedures for containment, and clean up action. The Government will provide as much information as possible regarding the characteristics of the material spilled, typically identified on the Material Safety Data Sheet (MSDS).

d. When ordered by the Government, the Contractor shall:

- (1) assist the Government in securing and assessing spill conditions;
- (2) contain and clean-up spilled OHS not cleaned-up by Government personnel;
- (3) decontaminate Government and Contractor equipment and property affected by spilled OHS after each use;
- (4) remain on-site until containment and cleanup is complete or as directed by the FIC or their representative.

e. The Contractor shall provide trained personnel for containment and cleanup of OHS spills. The Contractor shall comply with the instructions of the cognizant Navy Medical/Safety Department with respect to avoidance of conditions which create a nuisance or which may be hazardous to the health of military or civilian personnel.

f. The Contractor shall provide the appropriate levels of personnel protective equipment and clean-up equipment for use by their personnel during each response. Required levels of Personal Protective Equipment (PPE) typically include Level 0 through Level B. The Contractor shall be responsible for selection of the appropriate PPE.

g. For each OHS spill response, the Contractor shall provide a Hazardous Substance/Oil Spill Report as follows.

2. OHS Spill Response Requirements

The Contractor shall respond to spill notifications, e.g., telephone, e-mail, fax, and be on site as follows:

(1) Within two hours during regular working hours and commence cleanup within 30 minutes thereafter and work continuously until the spill is contained.

(2) Within four hours outside regular working hours and commence cleanup within 30 minutes thereafter and work continuously until the spill is contained.

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3. OHS Spill Containment, Cleanup and Disposal Requirements

- a. The Contractor shall provide a spill assessment to the NASSIG OHS Spill Response Coordinator within thirty minutes of on-site arrival.
- b. The Contractor shall contain spills to minimize damage to property, risk of human exposure, and release to the environment; and to ensure the installation complies with Federal, state and local statutes and regulations, and with DoD policies, instructions and guidance.
- c. The Contractor's spill containment, cleanup and disposal work shall comply with Federal statutes and regulations, Host Nation laws, and DoD policies, instructions and guidance.
- d. The Contractor shall coordinate work with the FIC or their designated representative.
- e. The Contractor shall place spilled materials in Contractor provided ADR approved containers no larger than 200-liter drums and shall manage the handling, transportation, delivery and disposal of all spilled material off base to an appropriate disposal location as per Federal, local and DoD policies, instructions and guidance.
- f. No incidence of spread of contamination outside the containment area due to the Contractor's non-performance, mismanagement or negligence shall be permitted. If such occurs, the Contractor shall take immediate action to further contain such contamination at their own cost.

4. OHS Spill Documentation and Reporting Requirements

- a. The Contractor shall prepare and provide an initial spill/cleanup report to the assigned Government representative within one working day following response to a hazardous spill notification. The initial spill/cleanup report shall contain, as a minimum: spill location, time of spill, spill source, severity and type of spill, responding actions, and test results to the NASSIG Environmental Office.
- b. The Contractor shall provide a written post-cleanup report to the assigned Government representative within three calendar days following the securing of the spill site by the FIC. The report shall detail the amount of spill cleanup, materials used to collect the spill, any neutralizing agents that might have been used, type of container used and any other pertinent information, backfill utilized, amount of absorbents, etc.